

COMMERCIAL LICENSE AGREEMENT

This Commercial License Agreement (the "**Agreement**") is entered into by and between:

1. **GrumpTech B.V.**, having his principal place of business at Raam 15, 2611 LS, Delft, the Netherlands ("**Licensor**"); and
2. The entity or individual identified during the order form, or executing this Agreement ("**Licensee**").

This Agreement becomes effective on the date Licensee completes an order (the "**Effective Date**").

BACKGROUND

A. Licensor and/or its licensors developed and own all intellectual property rights in the software libraries known as **Formly Designer** (the "**Software**"), backed by contributor license agreements for third-party contributions.

B. Licensor also makes the Software available under the Reciprocal Public License version 1.5 (RPL-1.5). Licensee, however, is obliged to conclude the Commercial License Agreement instead if it desires to integrate the Software into its proprietary applications without releasing its own source code under the RPL-1.5 copyleft requirements. Licensee wishes to do so.

C. Licensor is willing to grant Licensee a commercial license exempting Licensee from the RPL-1.5 copyleft obligations, subject to the terms of this Agreement.

SECTION 1. DEFINITIONS

1.1 "**Competitive Product**" means any library made available directly or indirectly to third parties that:

- (a) substantially overlaps with or incorporates the core functionality of the Licensed Software;
- (b) offers the Licensed Software as a managed service, wrapper, or redistributable component; or
- (c) enables third parties to build applications or automate processes using the core functionality of the Licensed Software.

1.2 **"Developer"** means any natural person (including employees, contractors, consultants, and personnel of affiliates) who has direct or indirect access to the source code, repositories (including GitHub/GitLab), CI/CD build pipelines, or development interfaces of the Licensed Software. Shared, generic, or inactive user accounts do not reduce the Developer count; the total number of software engineers in the project team constitutes the Developer count.

1.3 **"Licensed Software"** means the software library named Formly Designer (including source code, object code, documentation, updates, and upgrades) specified in Schedule I or provided via Licensors' repositories.

1.4 **"Modification"** means any alteration, enhancement, translation, adaptation, bug fix, or derivative work based on or integrating with the Licensed Software, created by or on behalf of Licensee, as contemplated under Article 45i of the Dutch Copyright Act (*Auteurswet*).

SECTION 2. LICENSE GRANT, RESTRICTIONS, AND ELECTRONIC FORMATION

2.1 **Grant and Intended Use.** Subject to Licensee's continuous payment of all applicable fees under Section 3, Licensor grants Licensee, as a lawful acquirer (*rechtmatige verkrijger*) within the meaning of Article 45j of the Dutch Copyright Act (*Auteurswet*), a non-exclusive, non-transferable, worldwide, non-sublicensable license to use, reproduce, and modify the Licensed Software solely for Licensee's intended use (*beoogd gebruik*), being its internal business operations and embedding within Licensee's proprietary

closed-source applications, provided those applications do not constitute a Competitive Product.

2.2 Developer-Based Scope. The license granted in Section 2.1 is restricted to the specific number of authorized Developers for whom Licensee has paid license fees in advance. Any deployment or access exceeding the authorized Developer count without prior payment constitutes a material breach of this Agreement and an infringement of Licensors copyright under Article 1 jo. Article 45h of the Dutch Copyright Act.

2.3 Competitive Restriction. Licensee shall not use, integrate, package, or distribute the Licensed Software as or within a Competitive Product.

2.4 Reverse Engineering and Decompilation Limits. Licensee shall not sublicense, distribute, or make the Licensed Software available as a standalone component or API.

2.5 Modalities for Error Correction (Art. 45j Aw). Pursuant to Article 45j of the Dutch Copyright Act and applicable case law, the modalities for exercising any statutory right to correct errors are agreed as follows:

- (a) Licensee shall first notify Licensors in writing, providing a detailed, reproducible report of the error preventing intended use.
- (b) Licensors retains the exclusive right of first repair to resolve the error or provide a workaround within 30 days after receiving notice.
- (c) Licensee may perform decompilation for error correction only if Licensors fails to provide a fix or workaround within that 30-day period, and solely to the extent strictly necessary to correct the reported error.
- (d) Any decompilation must be performed exclusively by direct employees of Licensee and shall not be outsourced to third parties.
- (e) All code, information, and insights derived from decompilation constitute Licensors Trade Secrets and exclusive Intellectual Property under Section 4.

2.6 Backup Copy (Art. 45k Aw). Licensee may make one (1) backup copy (*reservekopie*) of the Licensed Software strictly to the extent necessary for its intended use, pursuant to

Article 45k of the Dutch Copyright Act. Licensee shall reproduce all copyright and proprietary notices on the backup copy.

2.7 Observing and Testing (Art. 45l Aw). Licensee may observe, study, or test the functioning of the Licensed Software solely to determine the ideas and principles underlying any element of the Software, pursuant to Article 45l of the Dutch Copyright Act, provided Licensee does so while performing licensed acts of loading, displaying, running, transmitting, or storing the Software. This right does not entitle Licensee to access source code or bypass Section 2.4 or 2.5.

2.8 Electronic Contract Formation & Statutory Opt-Out. This Agreement may be formed electronically (including via online clickwrap, electronic order form, GitHub Sponsors, or receipt of private repository access). Acting in the course of a profession or business (B2B), the Parties explicitly agree, pursuant to Articles 6:227b(2) and 6:227c(5) of the Dutch Civil Code, to exclude and waive the applicability of the statutory information duties of Article 6:227b(1) BW and the error-correction provisions of Article 6:227c(1) BW.

2.9 Attribution. Licensee shall include a reasonable, visible acknowledgment of the Licensed Software and its author (e.g., "Contains Formly Designer by GrumpTech B.V." or similar) within the user interface (such as an "About", "Legal", or "Credits" screen) or in the primary technical documentation of any application incorporating the Licensed Software.

SECTION 3. FEES, REPORTING, AUDIT, AND SUSPENSION

3.1 License Fees. Licensee shall pay Licensor the periodic license fee per Developer specified in Schedule II or on the online checkout page in advance. All payment deadlines are strict deadlines (*fatale termijnen*); failure to pay by the due date places Licensee in default automatically without requiring a notice of default (*ingebrekestelling*) under Article 6:83(a) of the Dutch Civil Code.

3.2 Quarterly Reporting. Licensee shall deliver to Licensor a written report stating the total number of active Developers within 10 days after the end of each calendar quarter. Licensee shall provide automated access logs (e.g., repository or identity management logs) within 5 business days after receiving Licensor's request.

3.3 Audit Right. Licensor may inspect and audit Licensee's systems, repositories, and records to verify Developer counts and compliance with this Agreement.

- (a) If an audit reveals that Licensee underreported Developers by more than 2%, Licensee shall reimburse Licensor for all reasonable costs of the audit.
- (b) Licensee shall immediately pay all unpaid license fees revealed by an audit, plus an administrative penalty equal to 100% of the unpaid amount, without affecting Licensor's right to terminate this Agreement under Section 7.

3.4 Licensor's Right of Digital Suspension (*Opschortingsrecht*). If Licensee fails to pay any amount due or if Licensor reasonably suspects a breach of Section 2 or Section 4, Licensor may suspend (*opschorten*) Licensee's license rights, revoke access to GitHub repositories, API keys, access tokens, and private package registries, and withhold updates without prior notice and without incurring any liability to Licensee.

SECTION 4. INTELLECTUAL PROPERTY, MODIFICATIONS, AND CONTRIBUTOR AGREEMENT

4.1 Ownership. Licensor and its licensors retains all intellectual property rights, title, and interest in and to the Licensed Software, including all copyrights under the Dutch Copyright Act (*Auteurswet*), patent rights, and trade secrets.

4.2 Contributor License Agreement (CLA) Requirement. Any Modification created, contributed, or made available by or on behalf of Licensee or its Developers is strictly subject to, and requires the execution of and full compliance with, the Contributor License Agreement (CLA) set forth in **Schedule III**, which forms an **integral and inextricable part (*onlosmakelijk onderdeel*)** of this Agreement. Licensee shall ensure

that all Developers sign or adhere to said CLA prior to creating or contributing any Modifications.

4.3 Advance Assignment of Modifications. To the extent any Modifications created by or for Licensee qualify as copyrightable works or derivative works under Article 10 lid 2 or Article 45i of the Dutch Copyright Act, Licensee hereby assigns to Licensor in advance all intellectual property rights in those Modifications, in accordance with the CLA and this Agreement. This Agreement and the CLA together constitute the written deed of transfer (*akte van overdracht*) required under Article 2 of the Dutch Copyright Act. Licensee shall execute any further documents requested by Licensor to perfect this assignment.

4.4 Waiver of Moral Rights. To the maximum extent permitted by Article 25 lid 3 and Article 45g of the Dutch Copyright Act, Licensee waives (and shall procure that its employees and contractors waive) all moral rights (*persoonlijkheidsrechten*) in respect of any Modifications, including rights of attribution and rights to object to alterations or adaptations.

4.5 Licensor Exploitation. Licensor may freely exploit, sublicense, commercialize, or incorporate any Modifications into any commercial or open-source (including RPL-1.5) releases of the Licensed Software.

4.6 Fallback License. If applicable law prevents the advance assignment under Section 4.3, Licensee hereby grants Licensor an exclusive, perpetual, irrevocable, worldwide, royalty-free, fully sublicensable license to use, modify, reproduce, distribute, and display those Modifications for any purpose.

4.7 Non-Assignment. Licensee shall not assign, transfer, or pledge this Agreement or any rights under it. This prohibition has property-law effect (*goederenrechtelijke werking*) under Article 3:83(2) of the Dutch Civil Code.

SECTION 5. DUTY OF CARE, DISCLAIMER, AND INDEMNIFICATION

5.1 Standard of Care (*Zorgplicht*). Licensor warrants that, in developing and providing the Licensed Software, it has acted in accordance with the standard of care expected of a reasonably competent and reasonably acting automation expert (*redelijk bekwaam en redelijk handelend IT-deskundige*) under Dutch law.

5.2 No Maintenance or Support Obligations. Except for the standard of care set forth in Section 5.1 and Licensor's option to perform corrective maintenance under Section 2.5, this Agreement does not obligate Licensor to provide ongoing technical support, maintenance, updates, or service-level commitments (SLAs).

5.3 Limited Warranty & Disclaimer. Except for the express warranty set forth in Section 5.1, the Licensed Software is provided "as is" and "as available". Licensor disclaims all other warranties, whether express, implied, or statutory, including warranties of merchantability, fitness for a particular purpose, uninterrupted operation, or non-infringement.

5.4 Indemnification by Licensee. Licensee shall indemnify Licensor against all claims, liabilities, losses, damages, penalties, and legal expenses (including full legal defense fees) arising out of Licensee's use, embedding, or distribution of the Licensed Software or Licensee's applications. Licensor provides no intellectual property indemnification to Licensee.

SECTION 6. LIMITATION OF LIABILITY

6.1 Indirect Loss Exclusion. To the maximum extent permitted by applicable law, Licensor is not liable to Licensee for any indirect, consequential, special, incidental, statutory, or punitive damages, including loss of profits, loss of revenue, loss of data or data restoration costs, loss of goodwill, or business interruption, arising out of or relating to this Agreement or the Licensed Software.

6.2 Direct Loss Cap & Definition. Licensor's total aggregate liability for direct damages arising out of or relating to this Agreement, whether in contract, tort (including

negligence), or otherwise, is strictly limited to the total fees actually paid by Licensee to Licensors under this Agreement in the six (6) months preceding the event giving rise to liability, subject to an absolute maximum cap of €1,000.

For the purposes of this Agreement, "direct damages" means exclusively:

- (a) reasonable costs incurred by Licensee to ascertain the cause and extent of the direct damage;
- (b) reasonable costs incurred by Licensee to prevent or mitigate direct damage; and
- (c) reasonable costs incurred by Licensee to have Licensors' performance conform to this Agreement, and excludes all other heads of loss or damage. This limitation of liability applies strictly to Licensors' liability and does not limit Licensee's obligation to pay fees under Section 3 or contractual penalties under Section 8.

6.3 Intent and Conscious Recklessness Carve-Out. The exclusions and limitations in Section 6.1 and Section 6.2 do not apply to damages resulting from intentional misconduct (*opzet*) or conscious recklessness (*bewuste roekeloosheid*) of Licensors or Licensors' executive management (*leidinggevenden*).

6.4 Limitation Period for Claims. Any claim for damages against Licensors expires (*vervalt*) unless Licensee initiates formal legal proceedings under Section 9 within twelve (12) months after Licensee first became aware, or reasonably should have been aware, of the event giving rise to the claim.

SECTION 7. TERM, TERMINATION, DISSOLUTION, AND DESTRUCTION

7.1 Term and Ordinary Termination (*Opzegging*). This Agreement begins on the Effective Date for an initial term of ten (10) years.

7.2 Immediate Termination and Dissolution for Cause (*Ontbinding*). Licensors may terminate or dissolve (*ontbinden*) this Agreement immediately by written notice without court intervention or notice of default if Licensee:

- (a) fails to pay any amount due within 10 days after the strict due date (*fatale termijn*);
- (b) breaches Section 2.3, 2.4, 2.5, 4 (including failure to execute or comply with the CLA under Section 4.2), or 7.6;
- (c) applies for or is granted a suspension of payments (*surseance van betaling*), is declared bankrupt (*faillissement*), has an attachment (*beslag*) levied on a substantial part of its assets, or enters liquidation; or
- (d) undergoes a Change of Control resulting in ownership or control by a direct competitor of Licensor.

7.3 Exclusion of Undoing Obligations (*Uitsluiting Art. 6:271 BW*). To the maximum extent permitted by law, Article 6:271 of the Dutch Civil Code (*ongedaanmakingsverbintenissen*) is excluded. Dissolution or termination of this Agreement does not affect any amounts already invoiced, paid, or due to Licensor prior to dissolution/termination, which remain fully non-refundable and immediately payable.

7.4 No Continued Rights. Upon termination or dissolution of this Agreement for any reason, all licenses granted to Licensee terminate immediately. Licensee has no right to continue using the Licensed Software (*no grandfathering*), including within products or applications deployed prior to termination.

7.5 Waiver of Annulment and Rescission for Error (*Uitsluiting dwaling / vernietiging*). To the maximum extent permitted by law, Parties waive their right to seek annulment (*vernietiging*) or modification (*wijziging*) of this Agreement on grounds of error (*dwaling*, Article 6:228 of the Dutch Civil Code) or to seek judicial dissolution under Article 6:265 BW other than as expressly provided in this Agreement.

7.6 Obligation to Destroy. Within seven (7) days after termination or dissolution, Licensee shall cease using the Licensed Software, permanently delete all copies from its systems (including any backup copy made under Section 2.6), and deliver to Licensor a Certificate of Destruction signed by an executive officer.

7.7 **Survival.** Sections 3 (unpaid fees and penalties), 4 (IP ownership, Modifications, and CLA), 5.4 (Indemnification), 6 (Limitation of Liability), 7.3 to 7.6 (Post-termination and waivers), 8 (Injunctive Relief and Penalties), and 9 (Governing Law and Dispute Resolution) survive termination, dissolution, or expiration of this Agreement for any reason.

SECTION 8. INJUNCTIVE RELIEF AND PENALTIES

8.1 **Injunctive Relief.** Licensee acknowledges that a breach of Section 2 or Section 4 will cause Licensors irreparable harm for which monetary damages are inadequate. Licensors is entitled to seek immediate injunctive relief and specific performance without posting a bond.

8.2 **Contractual Penalty (*Boetebepaling*).** If Licensee breaches Section 2.3, 2.4, 2.5, 4 (including failure to execute or comply with the CLA under Section 4.2), or 7.6, Licensee shall forfeit (*verbeurt*) to Licensors an immediately due and payable contractual penalty (*onmiddellijk opeisbare boete*) of €50,000 per breach, plus €5,000 for each day or part of a day that the breach continues. Derogating expressly from Article 6:92 lids 1 and 2 of the Dutch Civil Code, this penalty is payable **in addition to** Licensors's right to demand performance (*nakoming*) and **in addition to** Licensors's right to claim full compensation for actual damages to the extent they exceed the penalty amount.

SECTION 9. MISCELLANEOUS AND DISPUTE RESOLUTION

9.1 **Entire Agreement.** This Agreement constitutes the complete agreement between the parties regarding its subject matter and supersedes all prior agreements and representations. Licensee's general purchasing conditions do not apply.

9.2 **Export Control.** Licensee shall comply with all applicable export control, trade sanction, and embargo laws (including EU and US regulations).

9.3 **Governing Law.** The laws of the Netherlands, including the Dutch Copyright Act (*Auteurswet*), govern this Agreement and any non-contractual obligations arising out of

it. The application of the UN Convention on Contracts for the International Sale of Goods (CISG) is expressly excluded.

9.4 Arbitration. Any dispute, controversy, or claim arising out of or in connection with this Agreement, or further agreements resulting therefrom, shall be finally settled in accordance with the Arbitration Rules of the Netherlands Arbitration Institute (*Nederlands Arbitrage Instituut - NAI*).

- (a) The arbitral tribunal shall consist of one (1) arbitrator.
- (b) The place of arbitration shall be Amsterdam, the Netherlands.
- (c) The proceedings shall be conducted in the English language.
- (d) The arbitral tribunal shall decide in accordance with the rules of law (*naar de regels des rechts*).

9.5 Emergency Relief Carve-Out. Section 9.4 does not prevent Licensor from seeking preliminary or injunctive relief (*kort geding* or *ex parte* injunctions) or prejudgment attachments (*conservatoir beslag*) before any competent court in any jurisdiction to protect its intellectual property, enforce post-termination obligations, or collect unpaid penalties.

[IN LIEU OF PHYSICAL SIGNATURE, ACCEPTANCE MAY BE COMPLETED ELECTRONICALLY VIA CLICKWRAP, ONLINE CHECKOUT, OR RECEIVING ACCESS TO PRIVATE REPOSITORIES]

GRUMPTech B.V. (LICENSOR)

Signature: _____

Name: _____

Date: _____

(LICENSEE)

Signature: _____

Name: _____

Title: _____

Date: _____

SCHEDULE III: CONTRIBUTOR LICENSE AGREEMENT (CLA)

(Forms an integral and inexorable part of the Commercial License Agreement)

1. **Inbound Grant and Assignment:** Contributor/Licensee hereby assigns to Licensors in advance all intellectual property rights (including copyrights under the Dutch Copyright Act) in and to any Modifications or contributions created or submitted.
2. **Representation:** Contributor warrants that it owns or has full authority to assign the contributed code and that the contribution does not infringe any third-party rights.
3. **Waiver of Moral Rights:** Contributor waives all moral rights (*persoonlijkheidsrechten*) in the contributions to the maximum extent permitted by law.